Tamil Nadu Generation & Distribution ... vs Powergrid Corporation Of India Ltd. & ... on 30 May, 2012

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

IA No.149 of 2012 & IA No.150 of 2012 in
DFR No.1679 of 2012

Dated : 30th May, 2012

Present: Hon'ble Mr. Justice M. Karpaga Vinayagam, Chairperson
Hon'ble Mr. Rakesh Nath, Technical Member

Tamil Nadu Generation & Distribution
Corporation Ltd. .... Appellant (s)

Versus

Powergrid Corporation of India Ltd. & Ors. ...Respondent (s)

Counsel for the Appellant(s): Mr. S. Vallinayagam

Counsel for Respondent (s): Mr. M.G. Ramachandran
for Powergrid

ORDER

IA No.149 of 2012 & IA No.150 of 2012 (Appls. for Condonation of delay) There are two Applications praying for condonation of delay. One Application is to condone the delay of 127 days in refiling the Appeal and the another Application is to condone the delay of 39 days in filing the Appeal against the impugned Order dated 01.08.2011.

The Appeal has been filed on 08.11.2011. The defects letter was issued by the Registry on 23.11.2011. Instead of curing the defects and filing it within 7 days time, the Appellant refiled the Appeal after a delay of 127 days on 16.04.2012 along with an Application to condone the delay. The only reason given in the Application to condone the delay in refiling is that the file was misplaced in the advocate's office. This is not a valid reason.

In view of the unexplained delay in filing both the Applications, we are not inclined to condone the same. Accordingly, the Application to condone the delay in refiling as well as the Application to condone the delay in filing the Appeal are dismissed. Consequently, the Appeal is also rejected.

(Rakesh Nath) (Justice M. Karpaga Vinayagam)

Technical Member Chairperson

ts/mk